ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	90th Commission Meeting (Record of the Discussions)
DATE:	03 August 2022
TIME:	02:00 AM
VENUE:	ACC Chosham

On 20 October 2020, Mr. David John Morgan (UK citizen) was contracted as an International Advisor to Justice Sector Programme. His Terms of Reference includes visiting Bhutan to engage with Justice Sector (JS) stakeholders and report on the following:

a) Assessment report on status quo of NKRA 16 vis-à-vis SDG 16:
b) Review the functionality of the national coordination mechanisms;
c) Comparative analysis and advise on national justice sector leadership items and coordination mechanisms, as well as other key areas such as legal aid system, juvenile justice, gender, specialized corruption trails etc;
d) Solid M&E framework for NKRA16, with clearly defined indicators, based upon a nationwide qualitative and quantitative baseline for JSP, - identified data sources to monitor and report progress on NKRA 16 including respective AKRAs;
e) Identification and execution of at least 3 ex-country institutional partnerships as for selected JS stakeholders etc. on policy, technical and academic/research exchange;
f) Help facilitate the setting up of the National Steering Committee (JSNSC) for overall policy/strategic guidance, prioritization of sector-wide development activities, supervision of the implementation and coordination on joint reporting on change and progress under NKRA 16;
g) Review progress and provide advice regarding the planned national Legal Needs Survey; and
h) Advise and support the Justice Sector Secretariat during the Mid Term Evaluation of the Justice Sector Programme.

The discussion point during the protocol visit were as follows:

- **Changes brought by the JSP to ACC**

  The Commission noted that in yesteryears, enforcement agencies were never on the same platform or were not using the same language and instead were focused in their own jurisdictions (territorial). There was never an integrated or coordinated approach. Now there is coordination and looking through the same lenses. Besides, JSP have helped in capacity building and infrastructure development on top of bringing the stakeholders together.

  It was also highlighted that there is need of data sharing and systems should be integrated to resolve a lot of issues such as paper clips and traditional way of handling cases or losing case files, duplication and enhance transparency. Need to shift towards openness and sharing of information (transparency) especially between OAG and ACC and outline processes and different stages of investigation/prosecution based on common understanding.

The Advisor noted the need to focus on user's end is important in data sharing to see whether it is implementable.

- **Any informal or formal coordination/sharing between the JS?**

  The Commission informed that because of reforms there is an improved systems or there will be systems in place to enhance coordination/cooperation. The Advisor shared that in UK, there are categorization of decision-making bodies (such as Gold, Silver, Bronze) to address or strategize problems. At the ACC level, investigators have their own networks, informal ways of networking and solving issues.

- **Coordination will continue after JSP?**

  Commission acknowledged that we do need to continue with the coordination (JSWC at the working level is doing well with consistent meetings) in line with the reforms and have to push the boundaries and change the lenses.

- **Common area of concerns in law enforcement agencies?**

  1. **Security concerns (personnel and information)** without jeopardizing the confidentiality. The ACC classifies the information by using stamp like urgent/confidential. There is no standard category while the information is out but within the ACC, there is classification and understanding of the information. At personal level, the enforcement personnel face certain risks.
  2. **Public awareness**: There is a need of advocacy and build public's confidence in JS agencies and Justice system by continuing the coordination and strengthen ourselves. The ACC have plan to conduct advocacy program with OAG towards common goal/purpose.
  3. **Media engagement:** vital part of society but dealing/handling media is difficult**.** Accuracy of Media reports/ social media is also a concern because of young journalists and no experience. This has consequences on public perception and misunderstanding.
  4. **Measurement of Achievement:** TAT of service delivery and the progress needs to be checked and see the challenges.
  5. **Networking and Coordination:** the ACC started involvement of Prosecutors in each key stage while investigating (started 2 months ago) plus joint investigation/prosecution, involvement of other agencies besides RBP and OAG such as customs is being piloted.

- **National Steering Committee**

  The meeting acknowledged that there is a need of activities to sustain and continue to address the issues at the national level. There is a need for good understanding and appreciation from the public and not just investigation but a preemptive approach towards making the public understand the deterrence or the consequences of investigation or criminal offences. Explore the possibility of pulling resources together towards similar goals. Create a forum for sharing information between the law enforcement agencies. Towards this, the ACC to share the proposal on forum for networking as a reference with the JSP Secretariate.